

The Power of Labels: 'Illegal Aliens' and the Intersection of Law Bias and Structural Violence

The intersection of law's bias and the normalization of structural violence constitutes a critical lens through which we can comprehend the complex dynamics shaping contemporary societies. This essay delves into the intricate linkage between legal bias and the normalization of social violence, with a particular focus on the construction of "illegal aliens" under immigration law. Historian Mae Ngai's assertion that immigration restrictions have birthed a new legal and political subject, simultaneously a social reality and a legal impossibility, serves as the foundational premise for our analysis (Ngai, 2014, p.4). To guide our exploration, we draw on a set of influential readings. Mae Ngai's work navigates the history and repercussions of deportation policies in the United States during the 1920s and 1930s, revealing the arbitrary and harsh nature of deportation proceedings and the limited procedural rights and lack of judicial review in deportation cases, advocating for administrative reform and discretion. Similarly, Tessa Morris-Suzuki's examination of Ômura detention center in postwar Japan unveils the nexus between democracy and the "wild zone" of state power, emphasizing the discretionary processes of the state in dealing with non-citizens, highlighting the need for clear rules and the protection of human rights to constrain this wild zone. Moreover, Maria Cristina García's work, "Seeking Refuge: Central American Migration to Mexico, the United States, and Canada" explores the role of advocacy networks in shaping refugee policies and challenging state responses in Central America, emphasizing the importance of fair immigration policies and the protection of asylum seekers' rights. This research essay will posit that the construction of "illegal aliens" is not merely a legal categorization but a powerful tool that perpetuates structural violence against marginalized groups. The arbitrariness of immigration procedures, evident in the 1924 immigration acts, has far-reaching consequences, disrupting solidarity among immigrant communities and generating cultural isolation. This essay contends that the legal isolation of "illegal aliens" creates a social reality that mirrors their legal impossibility, emphasizing the interconnectedness of law's bias and structural violence. This essay unfolds in three distinct sections. First, we scrutinize the tools employed to normalize deportation by examining the media's impact on shaping public perception and discuss the portrayal of Mexican immigrants as scapegoats. Second, we extend our analysis to

the historical roots of law bias and its impact on the construction of "illegal aliens" in the United States, and lastly we will explore the influence of U.S. immigration policies beyond its borders, with the case of Japan legal framework for immigration law.

In the early 20th century, the legal framework surrounding immigration in the United States underwent a transformation that not only criminalized unauthorized entry but also gave rise to the categorization of individuals as "illegal aliens." Historian Mae Ngai aptly argues that this legal maneuvering produced a paradoxical subject—a social reality but a legal impossibility. The consequences of such legal impossibility were far-reaching, particularly in the normalization of structural violence against marginalized groups. The legal impossibility imposed on "illegal aliens" manifested in the denial of social welfare and basic rights, creating a vulnerable population with limited recourse (Ngai 2014, p.76). The period between 1928 and 1936 witnessed mass deportations, with an estimated 400,000 to 1 million Mexicans forcibly expelled from the United States (Ngai 2014, p.72). This wave of deportations, fueled by economic recession and stricter immigration policies which we will discuss later, underscored the systemic bias embedded in immigration law and was furthered by the unavailability of social welfare for undocumented individuals. To comprehend the intricacies of this bias and its linkage to structural violence, it is essential to explore the tools employed to normalize the removal of individuals deemed "illegal aliens." The media, including newspapers, radio, and mass communication channels, played a pivotal role in shaping public perception and fostering an environment conducive to mass deportation. Indeed, refugees labeled as easy scapegoats by the Canadian Council for Refugees, became the target of media narratives that portrayed them as foreigners in their country of asylum (Garcia 2006, p.121). These refugees, many of whom were children, faced an uphill battle in a society that increasingly viewed them as unwelcome and burdensome.

Furthermore, the media's impact extended beyond shaping public opinion; it directly influenced deportation efforts by creating an atmosphere of hostility. Mexicans, in particular, were targeted through the dissemination of prejudiced narratives, encouraging them to voluntarily leave the country (Ngai 2014, p.63). The media internalized the issue, using the identity of Mexicans to influence their behavior and ultimately leading to a significant number of voluntary departures

during the Great Depression(Id, p.73). As racial animus grew, many Mexicans desolidarized with their identity due to its association with pejorative ideas and social inferiority and this undermining of the community served as a catalyst for voluntary departures, illustrating how the media's role went beyond mere reporting to actively shaping the social dynamics and individual choices of the targeted population. Moreover racial hostility was further facilitated by humiliating procedures at the Mexican border (Ngai 2014, p.68). Arbitrary measures, such as bathing and naked inspections based on racial presumptions, were enforced, not by law but by racial bias alone. Border Patrol officers, recruited from backgrounds often affiliated with the KKK, employed rough and sometimes violent methods, leading to altercation that resulted in the deaths of 15 officers in the first five years(Ngai, 2014 p.69): if no official reports were communicated for the losses on the immigrant's side, we can only imagine the ampler of the massacre.

The acts on immigration in 1924 mark a turning point for the United States border control: deportation is made much easier and systematic as unauthorized entries on the national territory are criminalized (Ngai 2014, p.57). This creates leeway for penalization and also required more specificity in the dedicated jurisdiction, if not to act justly at least to serve as a guide for law enforcers. Hence, the division of the immigration procedure according to the country and ethnicity of origin was created, making the entire process fundamentally arbitrary since it relied on how useful or safe a certain population was in the eyes of the immigration department. The creation of quotas also resulted in a disruption of solidarity between immigrant communities. Indeed, the legal isolation of aliens, or all those who had no choice but to enter the United States illegally since the quotas were unfavorable to them, generates a cultural isolation.

Among cultural aliens are many Europeans who used the Mexican and Canadian borders to enter the United States indirectly and settled within the country, now fully installed with jobs, properties and families. First, it can be argued that despite the legal impossibility of their inclusion, it was a social reality (Ngai 2014, p.75). Also, when Canadian and European communities realized they were facing a system that justified arbitrary treatment, at the time against Chinese and other Asians, they feared with reason that this power could one day be exercised against them. Nevertheless, despite decades of governmental abuse of Chinese immigrants that persisted until today (Week 3: Guest Speaker Estelle Mi) and was excused only by ideologic differences and the

degraded relation between both countries that resulted in little consequence on American state for its actions, the rest of the immigrant community did not stand for its Asian counterparts. Only when other groups felt that the threat was susceptible to target them next did they react to its unjust nature. In a way, quota differentiation and distinction between immigration cases based on factors beyond control of individuals had an impact on the mentality of the migrants: they do not relate or feel connected enough to people from other nationalities because of major differences in treatment by the government. This must help stabilize the power in place as the power inherent in a large group and the ability to stand up for itself is broken up if each is entitled to its place. This is visible in legal procedures: “The Boards of Special Inquiry, which conducted formal deportation hearings, were often one-man tribunals, with the immigration inspector often appearing simultaneously as arresting officer, prosecutor, and judge” (Ngai 2014, p.77) and “The boards operated without rules of evidence, readily admitting hearsay, opinion, anonymous letters, and “confidential information.” (Ibid)

In examining the intricate linkage between law bias and the normalization of structural violence, it is essential to extend our gaze beyond the borders of the United States and explore how its influence has shaped legal frameworks in other nations, such as Japan. The establishment of immigration laws and the construction of the category of "illegal aliens" in the United States during the 20th century had a profound impact not only domestically but also on a global scale, contributing to the perpetuation of biased legal structures that legitimized structural violence against marginalized groups.

The United States, often viewed as a paragon of democracy, paradoxically played a pivotal role in molding legal biases within other nations. Morris-Suzuki's exploration of Japan's postwar nationality and immigration laws sheds light on the intricate relationship between the US and Japanese legal systems. The imposition of legal restrictions, justified under the guise of safeguarding democratic principles, has far-reaching consequences that extend beyond national borders. According to her, the state justifies its claim to a monopoly of violence by subjecting itself to an established system of justice, as articulated by Max Weber (Morris-Suzuki 2006, p.7). However, the visibility of violence persists at the frontiers of the nation-state, particularly when dealing with non-citizens. This blind spot of democracy can reveal the intentions of a bureaucratic

governing machine unbound from constitutional constraints and bring to light where law biases come from. The co-production of postwar nationality and immigration laws through collaboration between the occupation authorities and the Japanese government underscores the influence of external forces in shaping legal biases. This can help us understand Japan's decision to close its borders, reportedly to safeguard its democratic values, but which instead revealed a self-fulfilling prophecy (Morris-Suzuki 2006, p.15). As a matter of fact, the seclusionist policies that aimed at protecting the Japanese economy and society from external despotic influences inadvertently intensified hostility and the likelihood of subversion from exterior powers. For example, many Koreans fleeing from the war found themselves deported and indefinitely detained due to the regulation of rights of local minorities entirely dependent on administrative discretion rather than the rule of law (Morris-Suzuki 2006, p.17). This cycle of repression and hostility exemplifies how legal biases, influenced by external models, can exacerbate social tensions and perpetuate structural violence.

From this, it becomes evident that immigration policies are integral to the process of nation-state building and the formation of nationalist identity. The historical origins of these policies in the United States, with its legal framework not only creating the concept of illegality but also contributing to the contemporary hyper criminalization of certain groups, such as "illegal aliens."

In conclusion, by tracing the historical roots of law bias and its profound impact on the construction of "illegal aliens," this essay has illuminated the intricate linkage between legal bias and the normalization of structural violence. The paradoxical existence of "illegal aliens" as both a social reality and a legal impossibility, as articulated by Mae Ngai, allowed us to analyze the historical events surrounding mass deportations of Mexicans during the early 20th century, that we have established as the far-reaching consequences of legal impossibility through the denial of social welfare, basic rights, and the creation of a vulnerable population devoid of recourse. Also, the tools employed to normalize the removal of "illegal aliens" were not only legal but also deeply ingrained in societal narratives, particularly through the media. Indeed, its portrayal of refugees as easy scapegoats and the targeted narratives against Mexicans fostered an environment conducive to mass deportations and racial animus, fueled by prejudiced narratives, which led to voluntary

departures during the Great Depression and underscored the media's role in actively shaping social dynamics and individual choices. Moreover, our exploration extended beyond U.S. borders, revealing the global impact of U.S. immigration policies, as evidenced by Tessa Morris-Suzuki's examination of Japan's postwar nationality and immigration laws. Here, the blind spot of democracy, where violence persists at the frontiers when dealing with non-citizens, exemplifies the unintended consequences of legal biases, revealing a bureaucratic governing machine unbound from constitutional constraints.

Finally, the construction of "illegal aliens" transcends a mere legal categorization; it is a potent tool perpetuating structural violence against marginalized groups. As we unveil the pervasive nature of law bias and its profound implications, we are compelled to confront the enduring legacy of biased legal structures and their role in shaping the identities of nations. Only through a nuanced understanding of this intersection between law bias and structural violence can we hope to dismantle the deeply embedded narratives that marginalize and oppress certain groups within our societies.

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